

maintenance of the children, the Court reserved the consideration of what would be the rights of the parties after the parent's death, and gave liberty to apply on that event (*b*).

17. **Charge of debts, &c., in a will.**—To proceed with the instances of implied trusts, if a person by will direct his realty to be sold, or charge it with debts and legacies (*c*), or with any particular legacy (*d*), the legal estate may descend to the heir, or it may pass to a devisee; but the Court will view the direction as an implied declaration of trust, and will enforce the execution of it against the legal proprietor.

18. **Conditions construed as trusts.**—So, in many cases, if a person devise an estate with words of condition annexed, the conditional words are not construed to impose a legal forfeiture on breach so as to give a right of entry, but are viewed as trusts affecting the conscience of the owner, and so enforceable in a Court of Equity; as if a house be devised to A. for life, "he keeping the same in repair," or if an estate be given to A. in fee, "he paying the testator's debts within twelve months from the testator's death" (*e*).

19. **Agreement for valuable consideration.**—Again, if a person agree for valuable consideration to settle a specific estate, he thereby becomes a trustee of it for the intended objects, and all the consequences of a trust will follow (*f*); \* and so if he covenant to charge all lands [\*141] that he may possess at a particular time (*a*), or at any

(*b*) *Scott v. Key*, 35 Beav. 291.

(*c*) *Pitt v. Pelham*, 2 Freem. 134; S. C. 1 Ch. Rep. 283; *Locton v. Locton*, 2 Freem. 136; *Auby v. Doyl*, 1 Ch. Cas. 180; *Tenant v. Brown*, *ib.*; *Garfoot v. Garfoot*, 1 Ch. Ca. 35; S. C. 2 Freem. 176; *Gwilliams v. Rowel*, Hard. 204; *Blatch v. Wilder*, 1 Atk. 420; *Carvill v. Carvill*, 2 Ch. Rep. 301; *Cook v. Fountain*, 3 Swans. 592; *Bennet v. Davis*, 2 P. W. 318; *Briggs v. Sharp*, 20 L. R. Eq. 317, &c.

(*d*) *Wigg v. Wigg*, 1 Atk. 382; [*Re Kirk*, 21 Ch. D. 431.]

(*e*) *Wright v. Wilkin*, 2 Best & Sm.

232; *Re Skingley*, 3 Mac. & G. 221; *Gregg v. Coates*, 23 Beav. 33; [*Foot v. Cunningham*, 11 L. R. Eq. 300; reversed *Cunningham v. Foot*, 3 App. Cas. 974;] but see *Kingham v. Lee*, 15 Sim. 390; *Kinnersley v. Williamson*, 39 L. J. N. S. Ch. 788; 18 W. R. 1010.

(*f*) *Finch v. Winchelsea*, 1 P. W. 277; *Fremoult v. Dedire*, *ib.* 429; *Kennedy v. Daly*, 1 Sch. & Lef. 355; *Legard v. Hodges*, 1 Ves. jun. 477; S. C. 3 B. C. C. 531; 4 B. C. C. 421; *Ravenshaw v. Hollier*, 7 Sim. 3.

(*a*) *Wellesley v. Wellesley*, 4 M.